

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CUPP065669: MARITZA YVETTE VALENCIA, AS SUCCESSOR IN INTEREST
TO GUSTA VO VALENCIA CHAVEZ, et al. vs WONDERFUL CITRUS LLC, et al.**

08/31/2026 in Department 21

Demurrer to Plaintiff's Complaint for Lawrence Tractor Company Inc

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes "SUBMISSION ON TENTATIVE", Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court's tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motions:

- (1) Defendant Lawrence Tractor Company, Inc.'s Demurrer to Plaintiff's Complaint
- (2) Defendant Lawrence Tractor Company, Inc.'s Motion to Strike Portions of Plaintiff's Complaint

Tentative Ruling:

Defendant's demurrer for uncertainty and for failure to state a claim is SUSTAINED as to the first and seventh causes of action. As to uncertainty, Plaintiffs' use of block pleading creates unnecessary and avoidable uncertainty as it pertains to moving Defendant. As to the failure to state a claim, Plaintiffs failed to describe the negligent acts performed by moving party, and failed to state a legal basis for a non-manufacturer to effectuate a recall/retrofit. Plaintiff shall have 30 days' leave to amend.

Defendant's motion to strike the paragraphs in which conclusory claims of malicious wrongdoing are pled, and the prayer for punitive damages itself, is GRANTED. There are insufficient ultimate facts pled to show despicable conduct by the moving party, or that such conduct as approved/ratified by corporate management. Plaintiff shall have 30 days leave to amend.

Background:

This is a wrongful death case arising out of a single vehicle roll-over accident. The vehicle at issue was a John Deere tractor. It is alleged that Plaintiff was operating the tractor in the course

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and scope of his employment with co-defendant Wonderful Citrus II when it rolled over onto him, crushing him to death. Plaintiff's next of kin filed claims in the workers' compensation arena, which claims have reportedly been settled. They filed their complaint in this matter on 5/4/26 asserting eight causes of action as follows: (1) general negligence and wrongful death; (2) premises liability and wrongful death; (3) negligent undertaking and wrongful death; (4) strict liability – design defect; (5) strict liability – manufacturing defect; (6) strict liability - failure to warn; (7) negligent failure to recall/retrofit; and (8) survival action.

Discussion:

A. Demurrer

1. Uncertainty

Defendant objects to the operative pleading, in large part, because of the “block pleading” style utilized by plaintiffs. Block pleading exists when each claim for relief incorporates by reference all preceding paragraphs and allegations, regardless of whether such allegations are relevant to the theories of liability or causes of action alleged, or relevant to the specific defendant implicated. This type of pleading is disfavored because it creates ambiguity and redundancy, as well as masks the true causes of action which are the subject of the parties' dispute. (See *Bertero v. National General Corp.* (1974) 13 Cal.3d 43, 57; *Uhrich v. State Farm Fire & Casualty Co.* (2003) 109 Cal.App.4th 598, 605; *Children's Hosp. and Medical Center v. Bonta* (2002) 97 Cal.App.4th 740, 783; in accord, *Zinzuwadia v. Mortgage Electronic Registration Systems, Inc.*, WL6737837 at *17 (E.D. Cal. 2012); *Sollberger v. Wachovia Securities, LLC*, WL2674456 at *11-12 (C.D. Cal. 2010).)

The operative pleading herein is a good example of block pleading. Co-defendant Lawrence Tractor Company is identified as a responsible party in the causes of action for general negligence, strict products liability, and negligent failure to recall – but since the causes of action incorporate every preceding paragraph, many of which have nothing to do with the role Lawrence Tractor played (distributor), there is a mountain of averments laid upon Lawrence Tractor which requires a Hobson's choice: respond only to the averments clearly involving Lawrence Tractor, risking an alleged concession, or addressing everything under the sun. Even in the first cause of action for general negligence, which incorporates the first nineteen (19) paragraphs, plaintiffs allege that Lawrence Tractor:

- “owned, leased, occupied, managed, maintained, supervised, and/or controlled” the premises where the roll-over occurred;”
- Failed to “maintain the Premises so that those present at the Premises would be safe
- from rollover incidents;” and
- Failed to reasonably “design, research, develop, maintain, produce, process, assemble, inspect, supply, distribute, deliver, broker, market, package, label, warn, maintain, repair, modify, recall, retrofit, engineer, test, recommend, advertise, convey” the tractor that decedent was using.

Although Lawrence Tractor goes outside the four corner to inform this Court that its role here was limited to sale/distribution of the subject tractor, this Court would still find that the

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block/shotgun pleading makes it difficult for anyone to know just what plaintiffs claim Lawrence Tractor did wrong. On the ground of uncertainty, the demurrer is SUSTAINED with 30 days leave to amend.

2. Failure to State a Claim

On the alternative failure to state ground, the rule is this: if upon a consideration of all the facts stated it appears that the plaintiff is entitled to any relief at the hands of the court against the defendants, the pleading will be held good, although the facts may not be clearly stated or may be intermingled with a statement of other facts irrelevant to the cause of action shown. (*New Livable California v. Association of Bay Area Governments* (2020) 59 Cal.App.5th 709, 714; *Wittenberg v. Bornstein* (2020) 51 Cal.App.5th 556, 566.) In other words, a general demurrer for failure to state a cause of action must be overruled, if the pleading states, however inartfully, facts disclosing some right to relief. (*Weimer v. Nationstar Mortgage, LLC* (2020) 47 Cal.App.5th 341, 352.)

To state a cause of action for negligence, plaintiff must aver ultimate facts supporting each element: breach, causation, and damages. Duty may be imposed by law, be assumed by the defendant, or exist by virtue of a special relationship. The existence of a legal duty depends upon the foreseeability of the risk and a weighing of policy considerations for and against imposition of liability. Everyone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person, except so far as the latter has, willfully or by want of ordinary care, brought the injury upon himself or herself. *Rowland* remains the gold standard against which the imposition of common law tort liability in California is weighed by the courts in this state. Courts thus continue to employ *Rowland's* multi-element duty assessment in determining whether a particular defendant owed a tort duty to a given plaintiff. (See *Melton v. Boustred* (2010) 183 Cal.App.4th 521, 529-530.)

Defendant correctly posits that plaintiffs failed to identify any actual act performed (or omitted) by Lawrence Tractor that would support a negligence cause of action. Without the wrong, it is not possible to establish a nexus to duty or causation. On the ground of failure to state, the demurrer is SUSTAINED as to the first cause of action for general negligence and wrongful death, with 30 days leave to amend.

To state the seventh (7th) cause of action for negligent failure to recall/retrofit, a claim for failure to recall/retrofit requires that the following elements be established: (1) defendant manufactured the product; (2) defendant knew or reasonably should have known that the product was dangerous when used in a reasonably foreseeable manner; (3) defendant became aware of this defect after the product was sold; (4) defendant failed to recall/retrofit; (5) that a reasonable manufacturer under the same or similar circumstances would have recalled/retrofitted the product; (6) plaintiff was harmed; and (7) defendant's failure to recall/retrofit was a substantial factor in causing plaintiff's harm. See *M.G. v. Bodum USA, Inc.*, WL 718839 at *22 (N.D. Cal. 2021); in accord, *Lunghi v. Clark Equipment Co.* (1984) 153 Cal.App.3d 485, 494. Although CACI 1223 includes distributors and sellers as potential defendants, *manufacturers* have discretionary authority to recall their own products, but a down-stream participant in the

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stream of commerce does not absent government agency direction. Stated another way, as explained in the Restatement Third, Torts: Products Liability §11 comment a, there is no common law duty to recall: “even when a product is defective, an involuntary duty to recall should be imposed on the seller only by a governmental directive issued pursuant to statute or regulation. Issues relating to product recalls are best evaluated by governmental agencies capable of gathering adequate data regarding the ramifications of such undertakings.” Congress has vested the power of recall in the Consumer Product Safety Commission (15 USC §2064), and the National Highway Traffic Safety Administration (49 USC §§ 30117 to 30121). The unilateral power to recall does not exist with mere distributors or sellers of a product manufactured by others. On the grounds of failure to state, the demurrer is SUSTAINED with 30 days leave to amend.

B. Motion to Strike

Pursuant to CCP §§ 435 and 436, a party may move for an order striking from a pleading “any irrelevant, false or improper matter” or “any part of any pleading not drawn in conformity” with laws, rules or orders. The motion is to be used sparingly, not as a line item veto. *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683.

Contrary to popular folklore, there is no true heightened pleading requirement for a punitive damage prayer based on malice or oppression. However, conclusions of law without factual support are insufficient to withstand pleading attack. See *Curcini v. County of Alameda* (2008) 164 Cal.App.4th 629, 650; *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1039; *Monge v. Superior Court* (1986) 176 Cal.App.3d 503, 510. There is, however, a heightened level of proof. Plaintiff must proffer evidence which is “sufficiently strong to command the unhesitating assent of every reasonable mind.” *Amerigraphics, Inc. v. Mercury Cas. Co.* (2010) 182 Cal.App.4th 1538, 1559. The evidence must be of such degree as to leave “no substantial doubt” that defendant’s conduct was despicable and indicative of conscious disregard for the safety of others. *Scott v. Phoenix School, Inc.* (2009) 175 Cal.App.4th 702, 716; *Barton v. Alexander Hamilton Life Ins. Co. of America* (2003) 110 Cal.App.4th 1640, 1644. Whether it is necessary to consider this at the pleading stage is presently undecided, but as with any damage pled, the facts must permit some degree of recovery.

Malice means “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” Civil Code §3294(c)(1). Despicable conduct is conduct that is “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people [and] having the character of outrage frequently associated with crime.” *Scott, supra*, at 716. Stated another way, “punitive damages are appropriate if the defendant's acts are reprehensible [and which] could be described as evil, criminal, recklessly indifferent to the rights of the [plaintiff], or with a vexatious intention to injure.” *Food Pro International, Inc. v. Farmers Ins. Exchange* (2008) 169 Cal.App.4th 976, 994-995. To establish conscious disregard, the operative pleading must include ultimate facts of defendant's mindset, to wit: that the wrong was committed willfully or with a design to injure (aka “intent to vex, injure or annoy”), as opposed to negligently or mistakenly. *Spinks v. Equity Residential Brianwood Apartments* (2009) 171 Cal.App.4th 1004, 1055; *Lackner v. North* (2006) 135 Cal.App.4th 1188, 1210. The plaintiff must show “that the

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defendant was aware of the probable dangerous consequences of his conduct, and that he wilfully and deliberately failed to avoid those consequences.” *Hoch v. Allied-Signal, Inc.* (1994) 24 Cal.App.4th 48, 61.

There are no facts pled in the operative pleading permitting any such finding as it relates to someone in the employ of Lawrence Tractor Company. Moreover, as against any corporation, plaintiff must show that an officer, director or managing agent: (1) had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others; (2) authorized the bad act; (3) ratified the bad act; or (4) was personally (ie, through controlling members) guilty of fraud, oppression or malice. Civil Code §3294(b); *Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, 1148-1149; in accord, *StreetScenes v. ITC Entertainment Group, Inc.* (2002) 103 Cal.App.4th 233, 242. There are no facts showing despicable conduct, let alone some corporate approval or ratification of a despicable act. The motion to strike the identified paragraphs and the prayer for punitive damages is GRANTED. Plaintiff will be granted 30 days leave to amend.